

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 04/14/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

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Law & Motion

1. 9:00 AM CASE NUMBER: L24-04656
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. BRIAN VONGTHAVADY
*HEARING ON MOTION IN RE: TO RELIEVED AS ATTY FOR DEF
FILED BY:

TENTATIVE RULING:

Counsel for Defendant filed a motion to be relieved as counsel. Defendant was notified by mail at an address for which he was served with process.

The Motion is unopposed by the Defendant.

Counsel declares that she has been unable to contact her client despite numerous attempts.

The court notes that there is a court trial scheduled for 6/3/26, but the Defendant should have ample

time to prepare or seek new counsel, or, at minimum, request a continuance to do so.

Disposition

Motion is granted.

Counsel for Defendant shall file the Order.

2. 9:00 AM CASE NUMBER: L24-06150
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KANJANA JANJOO
***HEARING ON MOTION IN RE: TO SET ASIDE JUDGMENT**
FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Plaintiff filed a Motion to Set Aside Judgment and dismissal without prejudice.

The Motion was served on an address for Defendant where substituted service occurred for service of process.

Either way, the court finds that there is no prejudice to Defendant in granting the Motion, so, even assuming that service of this Motion was not done properly, the court will dispense with notice requirements.

Disposition

Plaintiff's Motion is Granted.

The action is dismissed without prejudice.

Plaintiff to file Order.

3. 9:00 AM CASE NUMBER: L24-08676
CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. MARGARET GICHIA
***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER**
STIP FILED BY PLN ON 1/13/26
FILED BY: PORTFOLIO RECOVERY ASSOCIATES, LLC

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally

with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,165.10, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$3,094.

Costs are \$583.60.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,654.71.

Plaintiff to file order on Motion, as well as submit Judgment.

4. 9:00 AM CASE NUMBER: L25-02024
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. PANAS CHHANTYAL

***HEARING ON MOTION IN RE:**

FILED BY: CHHANTYAL, PANAS

TENTATIVE RULING:

Counsel for Defendant filed a motion to be relieved.

Counsel provided notice to the defendant.

Counsel cites a breakdown in the relationship, but the court will have to hear more, in an in camera examination, on 4/14/26, at 9am.

5. 9:00 AM CASE NUMBER: L25-03749
CASE NAME: BRIAN BURNETT VS. KILLARNEY PROPERTIES

***HEARING ON MOTION IN RE:
FILED BY: KILLARNEY PROPERTIES**

TENTATIVE RULING:

Background

Defendant filed a Motion to set aside the Entry of Default, claiming that there was a lack of actual notice, under Section 473.5 of the CCP. Specifically, Defendant claims that service of process was improper because Plaintiff served the Summons and Complaint on a third party who was not an agent of Defendant.

Entry of Default was filed on 9/15/25.

Notice of this Motion was timely filed on Plaintiff.

Plaintiff filed a response.

Analysis

Defendant seeks relief under Section 473.5 of the Code of Civil Procedure, which confers power on the court to set aside a default judgment when the defendant does not receive actual notice of the process.

A plaintiff can serve an individual defendant by substitute service. *CCP 415.20(a)*. This enables the plaintiff to serve the summons and complaint at the individual's office, with a person who is apparently in charge. There are two additional requirements, however: The plaintiff must, after service at the office, mail a copy of the documents to the same location; and, preceding this service, the plaintiff must have exercised diligence in attempting to personally serve the defendant. *CCP 415.20(a) and (b)*.

Service can occur on an agent of the defendant, but only if the defendant has designated a particular person to receive service of process. *CCP 416.90*.

Finally, service on a corporation can be completed by serving a designated agent, or a person acting in an official capacity for the corporation, such as an executive officer or secretary. *CCP 416.10*.

If the service was done by a registered process server, then there is a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Courts strictly construe *actual knowledge* "with the aim of implementing the policy of liberally granting relief so that cases may be resolved on their merits." *Olvera v. Olvera* (1991) 232 Cal.App.3d 32, 39.

Courts must interpret Section 473 in a similar manner, construing the statute liberally in order “to prevent injustice and to enable litigants to have their case heard on the merits. *Frank E. Beckett Co. v. Bobbit* (1960) 180 Cal. App. 2d 921, 924. “Even in a case where the showing under section 473 is not strong, or where there is any doubt as to setting aside of a default, such doubt should be resolved in favor of the application.” *Van Dyke v. MacMillan* (1958) 162 Cal. App.2d 594, 598. This court does not see why the spirit of the application of Section 473 would be any different than that for Section 473.5

In the instant matter, the court notes, first, that purported services by Plaintiff, of both the Complaint and Amended Complaint (proofs of which were filed 7/2/26 and 7/14/26, respectively), were not effected by a registered process server, so the burden is on the Plaintiff to demonstrate proper service of process. Also, service, both times, was on the same person, Ms. Castillo; and neither time was mail service ever involved.

Ms. Castillo, in her declaration attached to the Defendant’s moving papers, indicates that she is neither an employee nor an agent of the Defendant.

Next, Ms. Castillo is not a named defendant, so the methods of substitute service and service on a corporation are placed in issue. With respect to substitute service, even assuming Ms. Castillo was in charge of the office of Defendant where she was served, Plaintiff did not follow up that particular service with mail service, and Plaintiff never provided a declaration demonstrating their efforts to secure personal service of defendant.

Assuming the Defendant is a corporation, then service must be on an officer, secretary or designated agent. The only credible evidence in front of the court is that Ms. Castillo was not acting in any of those capacities (evidence that also cuts against any argument that Ms. Castillo was an agent for the Defendant as an individual, rather than corporation), and to the extent there is any doubt about the credibility of Ms. Castillo, the court resolves this doubt in favor of Defendant.

Finally, for the sake of argument, assuming Ms. Castillo was an appropriate agent or official of the Defendant, her declaration indicates she was not served with the Summons, and the Complaint had the incorrect case number. To the extent that there is conflicting evidence of this fact in the form of the proof of service indicating service of the Summons – thus suggesting doubt about Ms. Castillo’s declaration in this respect - the court resolves this doubt in favor of the Defendant.

In conclusion, the finds that Defendant was not given actual notice of service of process,

and the court will set aside the Entry of Default.

Disposition

Defendant's Motion to Set Aside is granted.

Defendant to file Answer within 10 days.

Defendant to file Order.

6. 9:00 AM CASE NUMBER: L25-03768
CASE NAME: LEYTON USA, INC. VS. HSG RESTAURANT GROUP
*HEARING ON MOTION IN RE: TO STRIKE ANSWER TO COMPLAINT
FILED BY: LEYTON USA, INC.

TENTATIVE RULING:

Background

Plaintiff has filed a Motion to Strike Defendant's Answer, on the ground that Defendant, a corporation, filed its answer *in propria persona*.

Plaintiff attached an exhibit reflected an attempt to meet and confer with the Defendant.

The Motion was properly noticed.

The Motion is unopposed.

Analysis

A court can strike any portion of a pleading that is not drawn or filed in conformity with the laws of the state. *CCP Section 436(b)*.

A corporation cannot appear in a civil action through a corporate officer or employee who is not an attorney. *Merco v. Construction Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724.

Courts must liberally grant parties the opportunity to amend a pleading in the event the entire pleading is stricken. *CCP 472a(d)*, *Vaccaro v. Kaiman* (1998) 63 CA4th 761, 768-769. "When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend." *Id.*

In the instant matter, the Defendant's Answer does not reflect that it was filed by an attorney. Though the Answer is signed, the caption of the Answer, where attorneys must indicate that they are acting on behalf of a party, is blank. The court is left to infer that the corporation is self-represented, which is not permitted.

However, this flaw appears to be one which the Defendant can easily remedy by procuring counsel.

Disposition

Plaintiff's Motion to Strike the entire Answer is granted.

Plaintiff's request for Entry of Default is denied.

Defendant will have 10 days from the date of this Order to file an amended Answer.

Plaintiff to file Order.

7. 9:00 AM CASE NUMBER: L25-04442

CASE NAME: CAPITAL ONE N.A. VS. JAY POOVAKAN

*HEARING ON MOTION IN RE:

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

However, Plaintiff apparently mailed notice of this Motion to Defendant at an address which has not been verified in any fashion. Defendant was not served with process, so the court cannot compare the two addresses, and the Defendant has not filed any documents with the court.

The document purportedly signed by Defendant, a stipulation filed by Plaintiff on 7/22/25, does not provide an address for the Defendant.

Disposition

This Motion will be continued to 7/7/26, 9am.

Plaintiff must serve Defendant with notice and a copy of the Motion.

Plaintiff must file the Order.

8. 9:00 AM CASE NUMBER: L25-04535

CASE NAME: CAPITAL ONE N.A. VS. KHADIJA BRYANT

*HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally with notice of the Summons and Complaint. The address was also in an attachment to the Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$11,654.51, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$873.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$12,528.12.

Plaintiff to file order on Motion, as well as submit Judgment.

9. 9:00 AM CASE NUMBER: L25-05601

CASE NAME: AQUA FINANCE, INC. VS. SUSAN HYDE

***HEARING ON MOTION IN RE: MOTION FOR LEAVE TO FILE FIRST AMENDED ANSWER FILED BY DEF**

ON 1/8/26

FILED BY: HYDE, SUSAN

TENTATIVE RULING:

Background

Defendant filed a Motion to Amend their Answer.

The Motion was timely served, and is unopposed.

Analysis

A trial court can permit the amendment of any pleading at any time. *CCP Section 473(a)*. In fact, courts should be quite liberal in permitting such amendments unless the statute of limitations has not expired, and the opposing party will not suffer prejudice. *Harris v. City of Santa Monica* (2013) 56 Cal4th 203, 240.

The factors for a court to consider include the moving party's conduct and the timeliness of the amendment *Duchrow v. Forrest* (2013) 215 CA4th 1359, 1377. An amendment that contradicts an admission in the original pleading should not ordinarily be allowed, unless the moving party shows that the admission was the result of mistake or negligence. *Astenius v. State* (2005) 126 CA4th 472, 476-477.

In the instant matter, there is nothing about Defendant's conduct, or the timeliness of the Motion, that would suggest to this court that leave should be denied. As stated in her declaration for this Motion, the defendant is elderly, self represented, and visually impaired. She filed this Motion soon after consulting with an attorney at a legal aid service, and less than eight months after the filing of the Complaint.

Moreover, there is nothing in the proposed Answer, which was included in Defendant's Motion, that is inconsistent with Defendant's initial Answer.

Finally, no trial date has been set.

Disposition

Defendant's Motion is granted.

Defendant to file Amended Answer within 10 days of this Order.

Defendant to file Order.

**HEARING ON DEMURRER TO: SECOND AMENDED COMPLAINT
FILED BY: ATWATER, STEPHEN W**

TENTATIVE RULING:

Defendant Stephen Atwater has filed a Demurrer (“Second Demurrer”) to the second cause of action in Plaintiff’s Second Amended Complaint (“SAC”), which was filed on 2/13/26. The SAC also alleges Professional Negligence in its first cause of action against the Defendant.

On 2/3/26, this court sustained Plaintiff’s Demurrer to all causes of action except the first, which alleged professional negligence, in Plaintiff’s First Amended Complaint (“FAC”), which had been filed 8/20/25. With respect to the third cause of action, alleging Defendant’s breach of contract, the court granted Plaintiff leave to amend.

Plaintiff has filed a timely response to the Second Demurrer.

Background

In the instant matter, the salient portions of the allegations are Defendant breached an implied-in-fact contract when he misdiagnosed Plaintiff’s cat, Chloe. The allegation is simply that Plaintiff “engaged Defendant Atwater’s services to diagnose and treat Chloe’s condition.” Page 5, SAC. Upon this engagement, “Plaintiff agreed to pay for veterinary services, and VCA Animal Hospitals agreed to provide competent veterinary oncology care.” Page 31, SAC.

Plaintiff specifically alleges that Defendant was authorized to provide oncology services, conducted a physical exam and recommended surgery, and after the surgery failed to disclose that the cat had been diagnosed with two types of cancer, per the lab results of the surgery, of which Defendant had knowledge. Defendant’s subsequent recommendation failed to include any course of treatment for the large cell lymphoma (the type of cancer which he had not disclosed to Plaintiff) which, according to the allegations, was the cancer that led to Chloe’s death soon afterward.

To be sure, there are no allegations that any terms of the agreement were written, nor that any terms were even discussed orally with Defendant. Yet Plaintiff invokes an agency theory of liability, claiming that Defendant was an employee and agent of VCA Animal Hospitals and acted on their behalf in providing services to Chloe, “and entering into the implied contract with Plaintiff.” Page 32, SAC. Plaintiff further claims that records and invoices “identified VCA Animal Hospitals as the provider of services, demonstrating that VCA Animal Hospitals was the contracting party.” Page 31, SAC.

Plaintiff further alleges the existence of the following terms:

The implied contract included terms requir(ed) VCA Animal Hospitals and Defendant Atwater to: (a) provide veterinary oncology services according to the applicable standard of care; (b) accurately diagnose Chloe's condition based on available diagnostic testing; (c) prescribe appropriate treatment based on the diagnosis; (d) provide safe medication with accurate dosing instructions; (e) respond to client safety concerns about medication discrepancies; and (f) comply with applicable California veterinary regulations.

Page 32, SAC.

Plaintiff goes on to allege that Defendant Atwater breached the contract by failing to accurately diagnose the cat's large cell lymphoma, and by prescribing treatment that was not appropriate for large cell lymphoma cancer.

The claims are virtually identical for the claim of Professional Negligence against the Defendant, in the First Cause of Action of the SAC.

Analysis

A party may demur if "[T]he pleading does not state facts sufficient to constitute a cause of action." Section 430.10(e) of the Code of Civil Procedure. The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.

When a demurrer is sustained, the court must determine if "there is a reasonable possibility that the defect can be cured by amendment." *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. The burden rests on the plaintiff to prove the possibility of amendment. *Id.*

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. Leave to amend can be granted for a plaintiff to allege an omitted cause of action, based on the alleged facts. *Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 216. However, leave to amend should not be granted where, in all probability, amendment would be

futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.

Two of the elements for breach of contract require that: The parties entered into a contract; and, that the defendant failed to do something that the contract required him to do. *Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186. The formation of a contract requires that the contract terms were clear enough that the parties could understand what each was required to do. *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 811. "The terms of a contract are reasonably certain if they provide a basis for determining the existence of a breach and for giving an appropriate remedy." (*Quotations.*) *Id.* In contrast, if "a supposed 'contract' does not provide a basis for determining what obligations that parties have agreed to, and hence does not make possible a determination what those agreed obligations have been breached, there is no contract." *Id.*

A contract can be created by the conduct of the parties, without spoken or written words. This is sometimes considered an implied-in-fact contract. *Marvin v. Marvin* (1976) 18 Cal.3d 660, 670. "As to the basic elements [of a contract cause of action], there is no difference between an express and implied contract ... While an implied in fact contract may be inferred from the conduct, situation or mutual relation of the parties, the very heart of this kind of agreement is an intent to promise." *Division of Labor Enforcement v. Transpacific Transportation Co.* (1977) 69 Cal.App.3d 268, 275.

Moreover, where a cause of action based on contract, personal judgment against the known agent of a disclosed principal is unjustified. *Hayman v. Shoemaker* (1962) 203 Cal.App.2d 140; also see *Automatic Poultry Feeder Co. v. Wedel* (1963) 213 Cal.app.2d 509. The only theory of agency liability for contract claims is governed by Section 2343 of the Civil Code, which requires either a writing or conduct by the agent that is "wrongful in (its) nature."

Finally, a plaintiff cannot maintain causes of action in professional negligence and breach of contract where no independent duty exists. *Freeman and Mills, Inc. v. Belcher Oil Co.* (1995) 11 Cal.4th 85, 103.

In the instant matter, there is no duty owed by Defendant to Plaintiff in the second cause of action that is independent from that in the first. The terms at issue of the alleged implied contract depend completely on standards of care in the veterinary profession. Plaintiff alleges that a breach of contract occurred by virtue of Defendant's improper diagnosis and treatment of Chloe. Yet there is no written agreement defining these

terms, nor is there any alleged conduct by the Defendant – other than his treatment of Chloe – that gives these terms any meaning. The only source of meaning for these terms is from the veterinary professional standards of care, if at all.

Yet this duty is precisely what is at issue under the first cause of action. There are no alleged terms that are born from a different source. In both causes of action, the breach can only occur by virtue of Defendant not maintaining a level of care particular to the veterinary profession.

Even assuming, for the sake of argument, that independent duties do exist with respect to the two causes of action, a breach of contract action does not lie under a theory of agency in this matter. *Hayman* seems directly on point, in that Plaintiff is well aware that Defendant is acting as an agent for VCA, at minimum. The only doctrine of agency liability of which this court is aware is that under Section 2343 of the Civil Code. Yet there is no writing alleged in this matter, nor are there any allegations that Defendant's actions were wrong in their nature.

And even if the issues above were to resolve in Plaintiff's favor, the allegations fail to offer any suggestion on how Defendant Atwater's conduct reflected an assent to the terms that Plaintiff has alleged comprised the implied contract.

Plaintiff suggests that there is something special about the relationship between a veterinarian and the owner of the pet he treats, such that any treatment by a veterinarian automatically invokes and includes particular terms of an agreement to which that veterinarian is bound.

But there doesn't seem to be any law supporting this position. For instance, Plaintiff cites *Loube v. Loube* (1998) 64 Cal.App.4th 421, at 429, for the proposition that the very existence of professional licensing regulations confer contractual obligations on parties entering into professional service agreements. Yet in *Loube*, the issue was whether a cause of action for ordinary negligence was actually an action on the underlying contract between the parties. The court found in the negative, distinguishing the matter from causes of action for professional negligence, where a duty arises "only because the parties have a contractual agreement." *Loube v. Loube, supra*, 64 Cal.App.4th at 429.

And certainly the fact that a plaintiff may have alleged Professional Negligence as a cause of action does not, by the mere fact of its allegation, prove the existence of any agreement.

Plaintiff also cites Section 3051 of the Civil Code to argue that implied contracts always exist between veterinarian and the owner of the treated pet.

But Section 3051 of the Civil Code is a statute about liens, and is thus inapposite: Defendant does not possess a lien on any property of Plaintiff.

Thus, the Demurrer to the Second Cause of Action with respect to Defendant Atwater is sustained.

Further, the court denies Plaintiff's request for leave to amend the second cause of action, yet again. Given the analysis above, the court finds that, in all probability, amendment would be futile.

Disposition

Defendant's Demurrer to the second cause of action is sustained.

Plaintiff's request for leave to amend with respect to Defendant Atwater is denied.

Defendant to file order.

Plaintiff to file amended complaint, only reflecting the first cause of action, within 10 days of this order.

11. 9:00 AM CASE NUMBER: L25-05676

CASE NAME: JULIE SCHINDLER VS. STEPHEN ATWATER

***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF SECOND AMENDED COMPLAINT**

FILED BY: ATWATER, STEPHEN W

TENTATIVE RULING:

On 2/3/26, this court sustained, in part, a demurrer by the Defense to the First Amended Complaint ("FAC") of the Plaintiff. The ruling ("2/3 Ruling") overruled the demurrer to the claim of professional negligence, but allowed Plaintiff leave to amend only the cause of action with respect to breach of contract. The only defendant in the FAC was Atwater.

Subsequently, on 2/13/26, Plaintiff filed a Second Amended Complaint ("SAC"), in which she added Breach of Contract as a cause of action, but also added the defendants VCA Animal Hospitals, VCA Inc., MARS PETCARE US, Inc, and DOES 1 through 10.

Defendant filed a timely Motion to Strike. Plaintiff filed a response, and Defendant filed a Reply.

Background

The following is a brief synopsis of the allegations in the SAC.

Plaintiff brought her cat, Chloe, to the VCA offices for treatment, upon the

recommendation of Chloe's primary, or referring, veterinarian. Defendant Atwater, a veterinarian employed by VCA, attended to Chloe and, after some testing, offered a diagnosis of Small Cell Lymphoma, a more treatable form of cancer, to Plaintiff. Defendant Atwater also recommended a course of treatment designed for this type of cancer.

Several weeks later, Chloe died. The autopsy concluded that kidney failure, due to Large Cell Lymphoma as well as an enlarged kidney, was the cause of death.

After this revelation, Plaintiff requested medical records from VCA and learned that testing results indicated that Chloe had two forms of cancer, Large Cell Lymphoma in addition to Small Cell Lymphoma. The former is more aggressive. Both of these diagnoses were apparent to Defendant Atwater in the testing results prior to his communications with Plaintiff, yet Defendant Atwater never disclosed the Large Cell Lymphoma to Plaintiff.

In addition, although Defendant Atwater verbally provided a diagnosis of only Small Cell Lymphoma to Plaintiff, this diagnosis was absent in the records from VCA. This apparently conflicted with the records from the referring veterinarian, which reflected communications with Defendant Atwater in which he diagnosed Chloe with Small Cell Lymphoma.

Defendant Atwater later sent to Plaintiff a condolence card in which he wrote that Chloe could have benefitted from more aggressive treatment, but that he understood Plaintiff's decision, which apparently suggested that Plaintiff had chosen to only treat Chloe for Small Cell Lymphoma.

Plaintiff also alleges that, after surgery for Small Cell Lymphoma, Chloe "was prescribed" the incorrect dosage of a pain medication. When Plaintiff raised concerns about the dosage, an employee of VCA, Ms. Shuttlesworth, who acted in the capacity of Doctor's Assistant Lead, assured her that the indicated dosage was fine, and there was no risk from a higher dosage. The dosage, which was apparently much higher than normal, contributed to Chloe's kidney failure and, ultimately, her death.

Plaintiff seeks compensatory and punitive damages for Chloe; the replacement or "special" value of Chloe to Plaintiff; and the cost of treatment that Chloe did not receive.

Analysis

The Scope Of Motion To Strike In Limited Civil Matters

With some exceptions, a plaintiff must secure leave from the court to amend a complaint. *Sections 472 and 473 of the CCP*. “It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all.” *Cnty. Water Coal. v. Santa Cruz Cnty. Loc. Agency Formation Com.* (2011) 200 Cal. App. 4th 1317, 1329, as modified on denial of reh’g (Dec. 9, 2011) (citation omitted) (striking cause of action “not drawn in conformity with...an order of the court” and citing Code of Civil Procedure § 436(b)).

Though, in a limited civil matter, “Motions to strike are allowed only on the ground that the damages or relief sought are not supported by the allegations of the complaint.” *CCP 92(d)*.

In the instant matter, a Motion to Strike is an improper remedy to address the claim that Plaintiff’s addition of new defendants in the SAC are time-barred. That claim, in a limited civil setting, is properly addressed in response to a Motion to Amend, or a Demurrer.

However, Plaintiff has clearly gone beyond the scope of the 2/3 Ruling. The court did not permit Plaintiff to add defendants to the SAC.

Whether Relief Is Supported By Factual Allegations

Under Civil Code § 3355, a party can only recover for the peculiar value of property as related to the unique economic value. “Peculiar value under Civil Code section 3355 refers to a property’s unique economic value, not its sentimental or emotional value.” *McMahon v. Craig* (2009) 176 Cal.App.4th 1502, 1518. The law considers animals to be property, with their value determined in the same manner as other property. See *Scharer v. San Luis Rey Equine Hospital, Inc.* (2012) 204 Cal.App.4th 421, 427-428 (citations omitted). Plaintiff seeks damages for the “special value” of Chloe.

Civil Code § 3340 provides that “[f]or wrongful injuries to animals being subjects of property, committed willfully or by gross negligence, in disregard of humanity, exemplary damages may be given.” Courts, however, have awarded punitive damages for intentional injury to a pet. For example, a neighbor shooting a pet cat with a pellet gun justified an award of punitive damages. *Kimes v. Grosser* (2011) 195 Cal. App. 4th 1556, 1558. Gross negligence consists of “the want of even scant care or an extreme departure from the ordinary standard of conduct.” *Franz v. Medical Quality Assurance* (1982) 31 Cal. 3d 124, 138.

“In an action for the breach of an obligation not arising from contract, where it is proven

by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” Civil Code § 3294(a). “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Id. at § 3294(c)(1). “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” “‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” Id. at § 3294(c)(3). In order to adequately plead punitive damages, the complaint must state facts sufficient to support allegations that defendant acted with malice, oppression, or fraud. See *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal. App. 4th 53, 63-64

There is no authority to recover damages for the costs of treatment not incurred. Plaintiff seeks damages for the “cost of proper treatment and care that Chloe did not receive.” Plaintiff did not incur any costs associated with treatment not given, and thus cannot recover monetary damages for that treatment. This prayer for relief should be stricken.

In the instant matter, Plaintiff’s following claims for relief are unsupported by the factual allegations:

Chloe’s special value;

The cost of treatment and care that Chloe did not receive;

Exemplary damages;

Damages for wrongful injuries committed by gross negligence, oppression, fraud or malice.

A pet does not have any special sentimental or emotional value. Moreover, punitive damages in this matter are wholly unsupported for two reasons. First, Defendant Atwater’s conduct, assuming it is true, does not rise to the level of gross negligence. His conduct amounts to nothing more than a misdiagnosis, which is not the want of even scant care or an extreme departure from the ordinary standard of conduct. And second, such conduct is not malicious, oppressive or fraudulent. Plaintiff contends that fraud occurred in the allegation that Defendant Atwater actively concealed his misdiagnosis when VCA provided medical records to Plaintiff. However, assuming this is true, the event occurred after the death of Chloe, so there is no causal link to injury or damage to

property.

Plaintiff's request for relief for the costs that Chloe should have received have no legal support.

Conclusion

Any mention of punitive or exemplary damages, or the special value of Chloe, shall be stricken. Plaintiff will not be granted leave to amend to seek such relief. The court finds no reasonable likelihood that these defects can be cured.

However, while Plaintiff apparently exceeded the scope of the court's 2/3 Ruling in adding the defendants VCA et al., MARS, and DOES, the court will grant her to leave to amend the complaint to add these defendants.

Disposition

Defendant's Motion is granted in part, and denied in part. The particulars are noted in the Conclusion section, above.

Plaintiff is given leave to amend her SAC to add new defendants, but she is not permitted leave to amend the relief she sought in the SAC with respect to punitive or exemplary damages, or any relief related to the special or sentimental value of Chloe, as detailed in the Conclusion section, above.

Defense to file Order.

Plaintiff will have 10 days from the date of this Order to amend.

12. 9:00 AM CASE NUMBER: L25-07941
CASE NAME: WELLS FARGO BANK, NA VS. MARSHA JOY

***HEARING ON MOTION IN RE: MSJ**

FILED BY:

TENTATIVE RULING:

This matter is not on calendar.

13. 9:00 AM CASE NUMBER: L25-08756
CASE NAME: SECURITYPLUS FEDERAL CREDIT UNION VS. LAUREN PORTER

***HEARING ON MOTION IN RE: TO TRANSFER VENUE AND JURISDICTION**

FILED BY:

TENTATIVE RULING:

This matter was continued from 2/3/26, when the court found that Plaintiff had not been properly served with notice of Plaintiff's Motion to Transfer Venue.

In the ruling from 2/3/26, Defendant was ordered to timely serve Plaintiff with notice of 4/14/26 as

the new date for the Motion.

Defendant has not filed a proof of service indicating that this notification has occurred.

Disposition

This Motion will be dropped. It will not be continued.

14. 9:00 AM CASE NUMBER: L25-12293
CASE NAME: WELLS FARGO BANK, N.A. VS. ENA ATTIOGBE
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: ATTIOGBE, ENA
TENTATIVE RULING:

Defendant has filed a Demurrer to the Complaint. Notice was provided and Plaintiff filed a response.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.

A defendant may raise the issue of standing in a Demurrer when the complaint does not state facts sufficient to constitute a cause of action by the particular plaintiff. *CCP 430.10(b) and (e); CCP 430.30(a); and Mercury Interactive Corp. v. Klein* (2007) 158 CA4th 60, 103-104.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821. The formation of a contract requires that the contract terms were clear enough that the parties could understand what each was required to do.

Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 811.

In the instant matter, the Complaint sufficiently alleges the existence of a written agreement between the parties, with definite terms. The writing and terms are reflected in the attachment to the Complaint, which indicate, in summary, that the agreement was executed when Defendant used the credit account, and that the terms involved the lending of money by the Plaintiff, and the obligation of the Defendant to repay the money which Plaintiff lent. Further, the Complaint shows that Plaintiff performed their end of the bargain, yet Defendant failed to do so when Defendant did not pay. Moreover, Plaintiff suffered damages of approximately \$13,000.

The Defendant has alleged that the Complaint fails to establish standing. But the Complaint and the attached contract sufficiently demonstrate that the original creditor, Wells Fargo, is also the Plaintiff.

Disposition

Defendant's Demurrer is overruled.

Plaintiff to file Order.

15. 9:00 AM CASE NUMBER: MSL21-02581

CASE NAME: JPMORGAN VS. VAILUU

*HEARING ON MOTION IN RE: MOTION TO SET ASIDE JUDGMENT FILED ON 1/9/26

FILED BY: JPMORGAN CHASE BANK, N.A

***TENTATIVE RULING**

Plaintiff has filed a request to Set Aside a Default Judgment (filed on 9/14/22) and dismiss the matter. There is no service on Defendant, but there is no prejudice in granting the Motion.

Disposition

Plaintiff's Motion to Set Aside Judgment and dismiss the case is granted.

Plaintiff to file Order.

16. 9:00 AM CASE NUMBER: MSL22-00512

CASE NAME: BANK OF AMERICA VS RODRIGUEZ

*HEARING ON MOTION IN RE: FOR ORDER SETTING ASIDE AND VACATING ITS PRIOR ORDER OF DISMISSAL AND FOR ENTRY OF JUDGMENT PURSUANT TO STIPULATION FILED BY BANK OF AMERICA, N.A.

FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with process. Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed on the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$12,756.39, plus costs of \$447, plus a first appearance fee, and less any credits for payments received.

The Declaration submitted by Plaintiff indicates: payments of \$750 and \$7,736 (totaling \$8,486), and no appearance fee. It lists costs in addition to the \$447, but this was not a term of the Stipulation.

Thus, the amount owed by Defendant is: $(12,756.39 + 447) - 8,486 = \$4,717.39$.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,717.39.

Plaintiff to file order on Motion, as well as submit Judgment.